

Tentative Rulings for August 13, 2026
Department 403

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 403

Begin at the next page

(34)

Tentative Ruling

Re: ***Bernal v. Town N Country Reedley, Inc.***
Superior Court Case No. 24CECG02689

Hearing Date: August 13, 2026 (Dept. 403)

Motion: by Defendants Reedley Properties and Lowe Enterprises, LLC
to Set Aside Default

Tentative Ruling:

To deny the motion to set aside default of Defendants Reedley Properties and Lowe Enterprises, LLC. (Code Civ. Proc. § 473(b).) This denial is without prejudice to any subsequent motion to set aside the defaults based upon equitable powers of the court.

Explanation:

"[T]he court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any ... resulting ... dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect." (Code Civ. Proc. § 473(b).) Relief pursuant to section 473, subdivision (b) is mandatory where the dismissal was solely caused by the attorney, i.e., the party did not contribute to the dismissal in any way. (See *Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1248; *Todd v. Thrifty Corp.* (1995) 34 Cal.App.4th 986, 991.) Relief must be granted even where the default resulted from inexcusable neglect by defendant's attorney. (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 897.) "Public policy dictates that disposition on the merits be favored over judicial efficiency." (*Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 392.)

In the present case, as required under Code of Civil Procedure section 473(b), Mr. Pham's declaration specifically admits the failure to appear at the case management conference and order to show case regarding that failure to appear resulted from his own error. (Pham Decl. ¶¶ 3-5.)

However, this motion comes approximately seven months after the entry of default from which relief is sought. The statute states that an application for mandatory relief must be made "no more than six months after entry of judgment." (Code Civ. Proc. § 473(b).) "The six-month limit is mandatory; a court has no authority to grant relief under section 473, subdivision (b), unless an application is made within the six-month period." (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340.) Although this application is only seven months following the entry of default, the court lacks jurisdiction to grant it.

Where relief is sought more than six months after the entry of dismissal, the motion is directed to the court's inherent equitable power to set aside a judgment on the ground

of extrinsic fraud or mistake. (*Olivera v. Grace* (1942) 19 Cal.2d 570, 576-578; *Sporn v. Home Depot USA, Inc.* (2005) 126 Cal.App.4th 1294, 1300; *Bae v. T.D. Service Co.* (2016) 245 Cal.App.4th 89, 97.) The terms "extrinsic fraud or mistake" are given a broad interpretation and cover almost any circumstance by which a party has been deprived of a fair hearing. There need be no actual fraud or mistake in the strict sense. (*Marriage of Park* (1980) 27 Cal.3d 337, 342; *Sporn v. Home Depot USA, Inc.*, *supra*, 126 Cal.App.4th at p. 1300 [requires evidence "that the papers were lost, stolen, forwarded to the wrong person or eaten by the dog"]; *County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1233.)

With regard to extrinsic mistake in particular, the term is broadly applied to cover situations in which circumstances extrinsic to the litigation have cost a party a hearing on the merits. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981.) These are usually cases of excusable neglect by defendant or defendant's attorney in failing to appear and present a defense: "If such neglect results in an unjust judgment, without a fair adversary hearing, the basis for equitable relief is present, and is often called 'extrinsic mistake.'" (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471; *Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 47.) Relief will be denied, however, if the complaining party's negligence permitted the mistake to occur. (*Kulchar v. Kulchar*, *supra*, 1 Cal.3d at p. 473; *Manson, Iver & York v. Black*, *supra*, 176 Cal.App.4th at p. 47; see also *Wilson v. Wilson* (1942) 55 Cal.App.2d 421.)

There are three essential requirements to obtain relief. The party seeking relief must show: (1) a meritorious case; (2) a satisfactory excuse for not presenting a defense to the original action; and (3) diligence in seeking to set aside the default once it was discovered. (*Rappleyea v. Campbell*, *supra*, 8 Cal.4th at p. 982; *Sporn v. Home Depot USA, Inc.*, *supra*, 126 Cal.App.4th at p. 1301.)

In the case at bench, due to multiple insurance claims representative changes and a misunderstanding as to whether defendants Reedley Properties and Lowe Enterprises, LLC were also insureds and intended clients of Foran Glennon a timely motion to set aside default was filed only for defendant Reedley Properties, LP. Counsel admits the mistake was made in the claims handling process and the failure to timely respond to the complaint not the fault of the defendants who timely tendered the claims to their insurer. (Hightower Decl., ¶ 12.) Counsel also demonstrated diligence in pursuing a remedy once she learned of the default against the two other entities she was intended to represent. (*Id.*, ¶¶ 4-5.) The evidence supports finding there is a satisfactory excuse for not presenting a timely defense and diligence by defendants. The motion lacks evidence to address the element of whether defendants have a meritorious case, as required for relief as an extrinsic mistake.

Although the court lacks jurisdiction to grant the motion on the statutory basis as presented here, the denial is without prejudice to defendants seeking relief under the court's inherent equitable power.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

(34)

Tentative Ruling

Re: ***Elsayed v. Viral Vamp LLC, et al.***
Superior Court Case No. 25CECG05879

Hearing Date: August 13, 2026 (Dept. 403)

Motion: by Defendants to Transfer Venue, or in the Alternative,
Compel Arbitration

Tentative Ruling:

To deny Defendants' motion to transfer venue.

To grant Defendants' motion to compel arbitration and to stay this action pending the resolution of arbitration.

Explanation:

Defendants Viral Vamp LLC, Viral Vamp Distributor LLC, and Kade Roberston, with joinder by Brady Carson, move the court for an order transferring venue to Volusia County, Florida pursuant to Code of Civil Procedure section 397. Defendants argue for the enforcement of a forum selection clause in the contract at issue in the plaintiff's complaint and additionally assert that because all defendants are located in Florida, they entered into the contract in Florida, and they were to perform the obligations of the contract in Florida that the proper venue for the action is within the State of Florida.

Where, as here, none of the defendants reside in the State of California, the action may be tried in the superior court in any county the plaintiff designates in the complaint. (Code Civ. Proc., § 395, subd. (b).) Accordingly, Fresno County is a proper venue for the action under the Code of Civil Procedure.

"In California, the procedure for enforcing a forum selection clause is a motion to stay or dismiss for forum non conveniens pursuant to Code of Civil Procedure sections 410.30 and 418.10 [citation], but a motion based on a forum selection clause is a special type of forum non conveniens motion." (*Berg v. MTC Electronics Technologies* (1998) 61 Cal.App.4th 349, 358.) Such a motion is made pursuant to the statutes governing forum non conveniens as they authorize a trial court to decline jurisdiction and allow the court to stay or dismiss the action. (*Cal-State Business Products & Service, Inc. v. Ricoh* (1993) 12 Cal.App.4th 1666, 1680; *Furda v. Superior Court* (1984) 161 Cal.App.3d 418, 425.)

The grounds for defendants' motion set forth in the moving papers will not provide the relief they seek in enforcing the forum selection clause within the parties' Amazon ECommerce Store Management Service Agreement. As a result, the motion to transfer venue to Florida is denied.

In the alternative, defendants' motion seeks to compel the parties to arbitrate their claims consistent with the Dispute Resolution clause with in the Agreement. The

Agreement provides, “[t]o the fullest extent permitted by law, all disputes arising out of and related to this Agreement (hereinafter “Dispute” or “Disputes”) shall be resolved exclusively by neutral binding arbitration in accordance with Chapter 682, Fla. Stat. by an arbitrator that is mutually selected by the parties.” (Robertson Decl., ¶ 9, Ex. A, ¶ k.)

“[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement - either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (see § 1281.2, subds. (a), (b)) - that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal. 4th 394, 413.)

Here, defendants have met their burden of demonstrating the existence of an agreement to arbitrate the claims arising from the Amazon Ecommerce Store Management Service Agreement as alleged in the operative First Amended Complaint. (Robertson Decl., ¶ 9, Ex. A, ¶ k.)

In opposition, plaintiff does not contest signing the agreement but argues he was fraudulently induced to sign the agreement and would not have signed if he knew of defendants' plan to take undisclosed profits from him. (Elsayed Decl., ¶¶ 8-9.) A contract fraudulently induced is voidable. (*Rosenthal, supra*, 14 Cal.4th at p. 415.)

“When a party to a contract containing an arbitration clause asserts fraud in the inducement of the contract *generally*, the assertion is no bar to the arbitration of the contract. [¶] The separable arbitration clause is considered valid, and the parties must arbitrate whether the contract was induced by fraud (even though a finding of fraud in the inducement may result in rescission of the contract as a whole).” (*Brown v. Wells Fargo Bank, N.A.* (2008) 168 Cal.App.4th 938, 958, citing *Rosenthal, supra*, at pp. 415-417.)

Plaintiff's claim for fraudulent inducement does not preclude enforcement of the arbitration clause within the agreement.¹ Accordingly, the court intends to grant defendants' motion to compel arbitration of plaintiff's claims in accordance with the parties' agreement.

¹ The Agreement at issue also includes a choice of law provision agreeing that the laws of the State of Florida shall govern any dispute relating to the agreement. (Robertson Decl., ¶9, Ex. A, ¶ l.) Neither party argues whether Florida law is intended to govern the enforcement of the arbitration provision, however it appears in accord with California law that an attack on the validity of the contract as a whole rather than specifically attacking the arbitration provision will not bar claims from being submitted to arbitration. (See *Simpson v. Cohen* (Fla. 4th DCA 2002) 812 So.2d 588, 590 [“It is well established that a dispute must be arbitrated where a complaint alleges fraud seeking to avoid or invalidate an entire agreement, rather than just the arbitration clause within the agreement.”].)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 12, 2026.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Okwelogu v. BSR Trucking Inc., et al***
Superior Court Case No. 26CU01127

Hearing Date: August 13, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To grant. Orders signed. No appearances necessary.

To set a status conference for Wednesday, November 18, 2026, at 3:30 p.m., in Department 403, for confirmation of deposit of the minor's funds into a blocked account. If an Acknowledgment of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) is filed at least five court days before the hearing, the status conference will come off calendar.

Pursuant to California Rules of Court, Rule 3.1312 and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 12, 2026 .
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: ***Ellis v. Planet Vegan, LLC et al.***
Superior Court Case No. 24CECG02698

Hearing Date: August 13, 2026 (Dept. 403)

Motion: (1) By Defendants Planet Vegan, LLC and Michael McElroy to Compel Further Responses to Special Interrogatories, Set Two and Request for Sanctions
(2) By Defendants Planet Vegan, LLC and Michael McElroy to Compel Further Responses to Request for Production, Set Two, and Request for Sanctions

Tentative Ruling:

To deny the motions as moot.

To impose monetary sanctions in the total amount of \$2,280 in favor of defendants Planet Vegan, LLC and Michael McElroy and against plaintiff Joe Ellis and his counsel of record joint and severally. Within 30 days of service of the order by the clerk, plaintiff Joe Ellis and his counsel of record shall pay sanctions to counsel for defendants Planet Vegan, LLC and Michael McElroy.

Explanation:

Defendants Planet Vegan, LLC and Michael McElroy (together "Defendants") seeks to compel further responses from plaintiff Joe Ellis ("Plaintiff") as to special interrogatories, and requests for production propounded. In opposition, plaintiff Joe Ellis ("Plaintiff") represents that on July 24, 2026, he has since served further responses.² The further responses necessitate further meet and confer efforts, including as to whether objections are inappropriately asserted. (E.g., Code Civ. Proc., § 2030.300, subd. (b)(1).) The motions as to the original responses are therefore denied as moot.

Sanctions are still warranted. Monetary sanctions are sufficient to compel disclosure so that the party seeking the discovery can prepare their case, and secondarily to compensate the requesting party for the expenses incurred in enforcing discovery. (*Ghanooni v. Super Shuttle* (1993) 20 Cal.App.4th 256, 262.) Sanctions are mandatory unless the court finds that the party acted "with substantial justification" or other circumstances that would render sanctions "unjust."

While further responses were made, they came at Defendants' expense to seek court orders to do so. Moreover, evidence was submitted that certain delays were anticipated. In an email correspondence dated April 1, 2026, Plaintiff stated having sought additional time to response, and which Defendants apparently declined

² To the extent that the opposition papers were untimely, the court exercises discretion to consider the late filings. (Cal. Rules of Ct., rule 3.1300(d).)

accommodating. (Velazquez Decl., Ex. C.) The email suggests that an objections-only response was made as a consequence thereof. (*Ibid.*) Plaintiff then suggested that meaningful responses were expected by April 3, 2026. These motions were filed on May 19, 2026. The court finds no circumstances that would render the imposition of sanctions as unjust, and further finds that the delay was the result of counsel's actions.

Defendants submit an hourly rate of \$190, which is approved. Sanctions are imposed in the total amount sought of \$2,280 in favor of defendants Planet Vegan, LLC and Michael McElroy and against plaintiff Joe Ellis and his counsel of record, joint and severally.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 12, 2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Wilfley Enterprises, Inc. v. Joy***
Superior Court Case No. 23CECG02867

Hearing Date: August 13, 2026 (Dept. 403)

Motion: By Defendant to Reclassify Case

Tentative Ruling:

To grant defendant Melva Zimmerman Joy's motion and reclassify the case as a limited civil action. (Code Civ. Proc., § 403.040, subd. (b).) No reclassification fee is required. (Code Civ. Proc., § 403.040, subd. (c)(2).)

Explanation:

Code of Civil Procedure section 403.040, subdivision (b) allows for a defendant to file a motion for reclassification after the time to respond to the complaint, in which case the court shall grant the motion if (1) the case is incorrectly classified and (2) the defendant shows good cause for not seeking reclassification earlier. (Code Civ. Proc., § 403.040, subd. (b).)

A motion to reclassify an unlimited civil case as a limited civil case may be granted only if the court determines that plaintiff's claim is such that a recovery above the minimum required amount could not be obtained or is virtually unobtainable. (See *Walker v. Superior Court* (1991) 53 Cal.3d 257, 269.) Actions are designated as limited civil cases where the amount in controversy is \$35,000 or less. (Code Civ. Proc., § 86, subd. (a)(1).) The amount in controversy is the amount of the demand, or the recovery sought, in the action exclusive of attorneys' fees, interest, and costs. (*Id.*, § 85, subd. (a).)

Here, the case is incorrectly classified as a civil unlimited case. The operative Complaint prays for relief in the amount of \$1,238.00, which is less than the minimum amount to be classified as an unlimited civil case. Plaintiff Wilfley Enterprises, Inc. ("Plaintiff") argues in opposition that the damages may exceed \$35,000 at the time a judgment is reached due to the accrual of attorney's fees and other costs. This argument is unavailing, as attorney's fees and costs may not be included in the amount in controversy in determining the classification of an action. (Code Civ. Proc., § 85, subd. (a).) Plaintiff has not shown how the alleged damages would increase from \$1,238.00 to more than \$35,000 exclusive of interest, attorney's fees, and costs. The instant case involves a breach of contract for services rendered, with alleged damages as a sum certain. Thus, this case may be classified as a limited civil case because the minimum required amount for a civil unlimited case is virtually unobtainable.

In the present case, Melva Zimmerman Joy ("Defendant") must show good cause for the delay in filing the instant motion for reclassification. (Code Civ. Proc., § 403.040, subd. (b).) Defendant's explanation for why she had not brought the motion until about

ten months after it was due was that the parties were engaged in settlement negotiations. Ultimately, settlement had not been reached, and the instant motion was filed. In opposition, Plaintiff argues that the ongoing settlement negotiations between the parties should not be considered good cause for Defendant's late filing. Plaintiff declares that Defendant's settlement offers were not in good faith because the amount only satisfied the requested damages and did not satisfy Plaintiff's attorney's fees and costs. Defendant has demonstrated good cause such that the motion for reclassification may be granted.

Based on the above, the court finds that the Complaint facially indicates an amount for below \$35,000 and is therefore improperly classified. The court further finds that Defendant demonstrates good cause for delay due to prior settlement efforts. The motion is granted. A reclassification fee is not required. (Code Civ. Proc., § 403.040, subd. (c)(2).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 12, 2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Carillo v. Jireh Packing Company**
Superior Court Case No. 24CECG01937

Hearing Date: August 13, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Final Approval of Class Action Settlement

Tentative Ruling:

To grant, but limit the class representative service award to \$5,000. The difference shall be added to the net settlement to be distributed to the settlement class members. Class counsel shall submit to the court a proposed judgment consistent with the law and motion order within seven days of service of the minute order by the clerk.

To order the parties to return on Thursday, August 12, 2027, at 3:30 p.m. in Department 403 to inform the court of the total amount actually paid to the class members, pursuant to Code of Civil Procedure section 384, subdivision (b), so that the judgment can be amended and the distribution of any cy pres funds can be ordered. Documentation as to the amount paid to class members must be filed on or before July 22, 2027.

Explanation:

"Before final approval, the court must conduct an inquiry into the fairness of the proposed settlement." (Cal. Rules of Court, rule 3.769(g).) "The trial court has broad discretion to determine whether a class action settlement is fair. It should consider factors such as the strength of plaintiffs' case; the risk, expense, complexity and likely duration of further litigation; the risk of maintaining class action status through trial; the amount offered in settlement; the extent of discovery completed and the stage of the proceedings; the experience and views of counsel; the presence of a governmental participant; and the reaction of the class members to the proposed settlement." (Reed v. United Teachers Los Angeles (2012) 208 Cal.App.4th 322, 336.)

The court has vetted the fairness of the settlement through prior hearings, each with its own filings. The settlement here generally meets the standards for fairness, and the class has approved it, with no objections, disputes, or requests for exclusion. Only 18 of 436 notices were undeliverable. The court finds that the method of notice followed, which this court approved at the prior hearing, comports with due process and was reasonably calculated to reach the absent class members:

"Individual notice of class proceedings is not meant to guarantee that every member entitled to individual notice receives such notice," but "it is the court's duty to ensure that the notice ordered is reasonably calculated to reach the absent class members." [Citations.] After such appropriate notice is given, if the absent class members fail to opt out of the class action, such members will be bound by the court's actions, including settlement and judgment, even though those individuals never actually

receive notice. Cooper, 467 U.S. at 874, 104 S.Ct. 2794; 7B Charles Alan Wright, Arthur R. Miller & Mary Kay Kane, *Federal Practice and Procedure* § 1789 (2d ed.1986).

(*Reppert v. Marvin Lumber and Cedar Co., Inc.* (1st Cir. 2004) 359 F.3d 53, 56-57 emphasis added.)

Calculation of Class Member Payments

Based on the number of class members known to be participating, Mr. Brown of ILYM Group calculates the net settlement fund to be \$126,900 after deducting attorney fees and costs, the administration costs, and the class representative award. (Brown Decl. ¶ 15.) The highest estimated class payment is \$889.09 and the average payment is \$291.06. (Id. at ¶ 17.)

Payment to Class Representatives

Plaintiff seeks court approval of a \$7,500 payment to the named class representative, Randy Carillo. The court intends to approve a reduced enhancement payment of \$5,000 to the named plaintiff. Plaintiff has submitted a declaration estimating spending 32 hours in assisting counsel. (Carillo Decl., ¶ 13.) Plaintiff spent time in his initial intake, searched for his own documents, reviewed other documents provided to counsel, and made himself available to counsel throughout the litigation. (Ibid.) Plaintiff was employed by defendant for one month. (Id. at ¶ 2.)

There is no clear expense or financial risk or other risk beyond speculation that there would be no compensation received or that a future employer may hold his participation against him. The brevity of plaintiff's employment by defendant does not support the assertion that he gave up other individual claims. The evidence is not persuasive to justify an award of the equivalent of more than \$200 per hour to the named plaintiff where the highest class member payment is expected to be \$889.09.

A more reasonable amount, commensurate with the evidence of risk incurred in conferring a benefit to the class and enough to induce the named plaintiff to participate in the suit, is \$5,000 for the named plaintiff. The remaining \$2,500 set aside as enhancement payment can be added to the common fund for the benefit of all class members.

Attorneys' Fees

The settlement provided that the parties agreed to fees calculated at 35 percent of the gross settlement amount or \$92,750. Counsel has provided evidence of the time expended by the attorneys representing plaintiff and the class throughout this action to support the lodestar amount, as a cross-check of the percentage-based fees requested.

As a general rule, the lodestar method is the primary method for calculating the amount of class counsel's attorney's fees; however, the percentage-of-the benefit approach may be proper when there is a common fund. In some cases, it may be appropriate, when the monetary value of the class benefit can be determined with a

reasonable degree of certainty, such as this one, for the judge to cross-check or adjust the lodestar amount in comparison to a percentage of the common fund to ensure that the fee awarded is reasonable and within the range of fees freely negotiated in the legal marketplace in comparable litigation. (See *Laffitte v. Robert Half Int'l, Inc.* (2016) 1 Cal.5th 480, 488–497; *Roos v. Honewell Int'l, Inc.* (2015) 241 Cal.App.4th 1472, 1490–1494; *In re Consumer Privacy Cases* (2009) 175 Cal.App.4th 545, 557.)

The lodestar analysis is based on a "careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case." (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) As our Supreme Court has repeatedly made clear, the lodestar consists of "the number of hours *reasonably expended* multiplied by the *reasonable* hourly rate. . . ." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095, italics added; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1134.) Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type." (*Id.* at p. 1133.) The hourly rates are high for Fresno County and plaintiff has not explained why he retained out of town counsel.

Counsel have submitted evidence of the hours expended during litigation by two attorneys. Counsel worked 174.36 hours at hourly rates ranging from \$450 to \$600 for an estimated \$98,091 in attorney fees. As noted, these billing rates are high. The court is inclined to adjust the hourly billing rates for counsel to \$500 per hour for Joshua Shirian and \$300 per hour for Aaron Yousefzadeh.

With the adjusted billing rates, the court sets the lodestar at \$78,480. A 1.2 multiplier would result in exceeding the requested amount though. Counsel has provided sufficient evidence and discussion of the risk in pursuing litigation on a contingency basis. As such, the court intends to approve attorney's fees in the requested amount of \$92,750.

Costs

The Settlement Agreement provides that plaintiff's counsel would be reimbursed costs up to \$15,000.00. The request for actual costs of \$14,021.90 is supported with evidence and is approved. (Shirian Decl., Exh. 6.)

Administrator's Costs

The court intends to find the amount of \$7,850 as requested for ILYM Group to be reasonable, and approve the administrator's costs as requested.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 12, 2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Davila v. McAlister-Minor, et al.***
Superior Court Case No. 25CECG00808

Hearing Date: August 13, 2026 (Dept. 403)

Motion: By Plaintiff to Set Aside Dismissal

Tentative Ruling:

To grant plaintiff Cynthia Davila's motion to set aside dismissal. The dismissal entered on April 14, 2026, is set aside on the grounds of "attorney's mistake, inadvertence, surprise or neglect." (Code Civ. Proc., § 473, subd. (b).).

To set a Case Management Conference for September 10, 2026, at 3:27 p.m. in Department 403.

To deny defendant Torella McAlister-Minor's motions for sanctions against plaintiff Cynthia Davila. (Code Civ. Proc., §§ 128.5, 128.7.)

Explanation:

Unauthorized Practice of Law

The opposition filed in response to the instant motion was filed by defendant Torella McAlister-Minor ("Defendant") in propria persona on behalf of herself and defendants Fresh Start Youth Center and Renee Lane. A non-attorney cannot act in propria persona to represent another. (Bus. & Prof. Code, § 6125; *Abar v. Rogers* (1981) 124 Cal.App.3d 862, 865.) As such, while Defendant may represent herself, she may not represent other defendants. Thus, the opposition is considered as it relates to Defendant only.

Motion to Set Aside Dismissal

The court is empowered to relieve a party "upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Where a motion seeking this relief is based on an "attorney affidavit of fault," the relief is mandatory. (*Ibid.*) Otherwise, relief is discretionary. (*Ibid.*)

"Because the law favors disposing of cases on their merits, 'any doubts in applying section 473 must be resolved in favor of the party seeking relief from default [citations]. Therefore, a trial court order denying relief is scrutinized more carefully than an order permitting trial on the merits' (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [superseded by statute on other grounds])." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 135.) Where the party seeking relief seeks such relief promptly and no prejudice will result

to the opposing party, “very slight evidence will be required to justify a court in setting aside the default.” (*Elston v. City of Turlock, supra*, 38 Cal.3d at p. 233.)

Plaintiff's counsel requests that mandatory relief be granted under Code of Civil Procedure section 473, subdivision (b) to set aside dismissal. Plaintiff's counsel's application for relief included counsel's affidavit of fault. The affidavit states that counsel failed to appear at the hearing on April 14, 2026, which resulted in dismissal. Counsel declared that she overlooked the second page of the December 10, 2025 minute order that contained the setting of the hearing on April 14, 2026. Counsel submits that this mistake or her neglect resulted in dismissal of the case.

Defendant raises in opposition that plaintiff's counsel's failure to appear at the hearing on April 14, 2026, due to her failure to read the entire December 10, 2025 minute order does not constitute mistake, inadvertence, surprise, or neglect. However, where counsel files a sufficient affidavit of fault under Code of Civil Procedure section 473, subdivision (b), relief must be granted even where the dismissal resulted from counsel's inexcusable neglect. (See *Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 894, disapproved on other grounds by *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830.) Regardless, the court finds counsel's failure to be apprised of the entire minute order constitutes a mistake or excusable neglect.

Defendant further argues that she would be prejudiced if dismissal is set aside because the claims are stale and the costs of further litigation was unanticipated. After the case was dismissed on April 14, 2026, over one month lapsed when the instant motion was filed by Plaintiff's counsel. Defendant does not present by way of argument or declaration how the advancement of about one month in the case has prejudiced Defendant's ability to effectively conduct discovery or otherwise participate in the litigation. As such, the possible prejudice to Defendant is outweighed by the policy favoring disposition on the merits of a case. (*Elston v. City of Turlock, supra*, 38 Cal.3d at p. 233.)

Plaintiff's counsel's affidavit sufficiently demonstrated that her mistake or neglect resulted in the dismissal of the action, thus, mandatory relief is proper.

Procedural Requirements

The application for discretionary relief, and notice to the adverse party, must be made within a reasonable time, not exceeding six months from the court's order to dismiss. (Code Civ. Proc., § 473, subd. (b).) Plaintiff met the procedural requirements in filing the present motion.

Therefore, the motion to set aside the dismissal ordered on April 14, 2026 is granted.

Request for Sanctions

In her opposition, Defendant requests for sanctions to be issued against Plaintiff under Code of Civil Procedure sections 128.5 and 128.7. Motions for sanctions under these sections must be made separately from other motions or requests. (Code Civ. Proc., §§

128.5, subd. (f)(1)(A), 128.7, subd. (c)(1).) Defendant's request is included in her opposition to the present motion. As such, Defendant's motion for sanctions does not comply for the procedural requirements of either statute because they were not made separately from other motions and requests. Defendant's request for sanctions is denied.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 12, 2026.
(Judge's initials) (Date)